

(Regulation 10-B)

* Employer's Code No

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1. Name of the Factory/Establishment
2. Complete Postal Address
of the Factory/Establishment PIN
3. (a) Telephone No., if any
(b) Fax No., if any
(c) E-mail address, if any
4. Location of Factory/Establishment
(a) State (b) District
(c) Municipality/Ward
(d) Name of Town/Revenue Village
(Taluka/Tahsil)
(e) Police Station
(f) Revenue Demarcation/Hudbast No.
5. (a) Whether the building/premises of factory/Estt. is owned or hired.
.....
(b) If hired or there is a change in the name of Unit/ownership, please indicate :-
.....
(i) ESI Code No., if covered earlier
(ii) Date from which earlier factory/estt. closed down
(iii) Terms and conditions under which property acquired/taken on lease (enclose copy of agreement/relevant deed).
6. Details of Bank A/c (b) Name of Bank and Branch
(a) Account No. (1)
(b) Account No. (2)
(c) Account No. (3)
7. (a) Income Tax PAN/GIR No.
(b) Income Tax Ward/Circle/Area
8. Exact nature of work/business carried on
9. Date of commencement of factory/Estt.
10. (a) Whether registered under
Factories/Shop & Estt. Other Act
(Please specify)
(b) Factory licence No./Trade Licence Licence No. Date Licensing Authority
No./Catering Estt. Licence No./
shop, Estt. Registration No./
Licence No. under Cinematography
Act etc.
(c) Please give whichever No. Date Issuing Authority
is applicable
(i) Commercial Tax No. (i)
(ii) State Sales Tax No. (ii)

17. Total wages paid in the preceeding month

	Total Wages	Wages paid to employees drawing wages Rs. 10,000/- or less
To employees employed directly by the Principal Employer		
To employees employed through Immediate Employer/Contractor		

18. Give first date since when 10/20** or more coverable employees under ESI Act, were employed for wages

I hereby declare that the statement given above is correct to the best of my knowledge and belief. I also undertake to intimate changes, if any, promptly to the Regional Office/Sub-Regional Office, ESI Corporation as soon as such changes take place.

Date :Name and Signature

Place :Designation with seal

(should be signed by principal employer U/S 2(17) of ESI Act)

- * Please mention the Employer's Code No., if previously allotted in case the factory/establishment was covered under the ESI Act.
- * Score out whichever is not applicable. In case of factory/an establishment using power in the manufacturing process the number applicable is 10 persons or more. In the case of a factory not using power or an establishment engaged in manufacturing process without using power or any other establishment, the number applicable is 20 or more persons.

INSTRUCTIONS

Note 1 : Please enclose photocopy of the following deeds/agreements/documents/certificate :

(a) Registration Certificate/Licence issued under Shops and Establishment Act or Factories Act.

(b) Latest Rent Bill of the premises you are occupying indicating the capacity in which the premises is occupied, if applicable.

(c) Latest building Tax/Property Tax receipt (Zerox).

(d) Memorandum and Articles of Association/Partnership Deed/Trust Deed.

(e) Zerox copy of certificate of commencement of production and/or Registration No. of CST/ST.

Note 2 : ‘Power’ shall have the meaning assigned to it in the Factories Act, 1948 which is as under :-

‘Power’ means electrical energy, or any other form of energy which is mechanically transmitted and is not generated by human or animal agency.

Note 3 : Manufacturing process as defined in section 2(k) in Factories Act is as under :-

‘manufacturing process’ means any process for :-

(i) making, altering, repairing, ornamenting, finishing, packing, oiling, washing, cleaning, breaking up, demolishing, or otherwise treating or adapting any article or substance with a view to its use, sale, transport, delivery or disposal;

(ii) pumping oil, water, sewage or any other substance;

(iii) generating, transforming or transmitting power;

(iv) composing types for printing, printing by letter press, lithography photogravure or other similar process or book binding;

(v) constructing, reconstructing, repairing, refitting, finishing or breaking up ships or vessels;

(vi) preserving or storing any article in cold storage.

Note 4 : “Immediate Employee” in relation to employees employed by or through him, means a person who has undertaken the execution, on the premises of the factory or an establishment to which this Act applies or under the supervision of the principal employer or his agent, of the whole or any part of any work which is ordinarily part of the work of the factory or establishment of the principal employer or is preliminary to the work carried on in, or incidental to the purpose of, any such factory or establishment and includes a person by whom the services of an employee who has entered into a contract of service with him are temporarily lent or let on hire to the principal employer and includes a contractor.

Note 5 : “Principal Employer” means —

- (a) In a factory, the owner or occupier of the factory and includes the managing agent of such owner or occupier, the legal representative of a deceased owner or occupier and where a person has been named as the manager of the factory under the Factories Act, 1948, the person so named;
- (b) In any establishment under the control of any department of any Government, in India the authority appointed, by such Government in this behalf or where no authority is so appointed, the head of the Departments;
- (c) In any other establishment, any person responsible for the supervision and control of the establishment.

Note 6 : “Occupier” of a factory/establishment means the person who has ultimate control over the affairs of the factory/establishment and when the said affairs are entrusted to a managing agent shall be the Occupier of the factory/establishment.

Note 7 : “Employees” means any person employed for wages in or in connection with the work of a factory or an establishment to which this Act applies and —

- (i) who is directly employed by the principal employer for any work incidental or preliminary to or connected with the work of the factory or establishment whether such work is done by the employee in the factory or establishment or elsewhere; or
- (ii) who is employed by or through an immediate employer on the premises of the factory or establishment or under the supervision of the principal employer or his agent or work which is ordinarily part of the work of the factory or establishment or which is preliminary to be carried on in or incidental to the purpose of the factory or establishment; or
- (iii) whose services are temporarily lent or let on hire to the principal employer by the person with whom the person whose services are so lent or let on hire has entered into a contract of service;
- (iv) and includes any person employed for wages on any work connected with the administration of the factory or establishment or any part, department, or branch thereof with the purchase of raw materials for, or the distribution or sale of the products of, the factory or establishment; (or any person engaged as an apprentice, not being an apprentice engaged under the Apprentices Act, 1961 (52 of 1961), or under the standing orders of the establishment; but does not include) —
 - (a) Any member of the Indian Naval, Military or Air Force; or
 - (b) Any person so employed whose wages excluding remuneration for overtime work exceeds such wages as may be prescribed by the Central Government, a month;

PROVIDED that an employee whose wages excluding remuneration for over time work exceeds such wages as may be prescribed by the Central Government, a month at any time after and not before the beginning of the contribution period, shall continue to be an employee until the end of that period.

Note 8 : “Wages” means all remuneration paid or payable in cash to an employee, if the terms of the contract of employment, express or implied, were fulfilled and includes any payment to an employee in respect of any period of authorized leave, lock-out, strike which is not illegal or lay off and other additional remuneration, if any, paid at intervals not exceeding two months, but does not include :-

- (a) any contribution paid by the employer to any pension fund or provident fund, or under this Act;
- (b) any travelling allowance or the value of any travelling concession;
- (c) any sum paid to the person employed to defray special expenses entailed on him by the nature of his employment; or
- (d) any gratuity payable on discharge.